URL: https://wwwcdn.imo.org/localresources/en/KnowledgeCentre/IndexofIMOResolutions/MSCResolutions/MSC.561(108).pdf
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
WATCHKEEPING FOR FISHING VESSEL PERSONNEL, 1995 (Revised annex to the 1995 STCW-F Convention)
RESOLUTION MSC.561(108)
(adopted on 23 May 2024)
AMENDMENTS TO THE ANNEX TO THE
INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
WATCHKEEPING FOR FISHING VESSEL PERSONNEL, 1995
(Revised annex to the 1995 STCW-F Convention)
THE MARITIME SAFETY COMMITTEE,
RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,
RECALLING ALSO article 10 of the International Convention on Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel, 1995 (1995 STCW -F Convention), concerning the procedures for amending the 1995 STCW-F Convention,
HAVING CONSIDERED, at its 108th session, draft amendments to the annex to the 1995

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HAVING CONSIDERED, at its 108th session, draft amendments to the annex to the 1995 STCW-F Convention, circulated in accordance with article 10.2.1 thereof,
1 ADOPTS, in accordance with article 10.2.4 of the 1995 STCW -F Convention, amendments to the annex to the 1995 STCW-F Convention, the text of which is set out in the annex to the present resolution;
2 DETERMINES, in accordance with article 10.2.7.2 of the 1995 STCW-F Convention, that said amendments shall be deemed to have been accepted on 1 July 2025, unless, prior to that date, more than one third of the Parties have notified the Secretary -General of the Organization that they object to the amendments;
3 INVITES the Parties to note that, in accordance with article 10.2.9 of the 1995 STCW-F Convention, the amendments annexed hereto shall enter into force on 1 January 2026 upon their acceptance in accordance with paragraph 2 above;
4 REQUESTS the Secretary -General, for the purposes of article 10.2.5

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on 1 January 2026 upon their acceptance in accordance with paragraph 2 above;
4 REQUESTS the Secretary -General, for the purposes of article 10.2.5
of the 1995 STCW-F Convention, to transmit certified copies of the present resolution and the
text of the amendments contained in the annex to all Parties to the 1995 STCW-F Convention;
5 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its
annex to Members of the Organization which are not Parties to the 1995 STCW-F Convention.
6 FURTHER REQUESTS the Secretary-General to prepare a consolidated certified text
of the 1995 STCW-F Convention.
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ANNEX
AMENDMENTS TO THE
INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND

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ANNEX

AMENDMENTS TO THE

INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND WATCHKEEPING FOR FISHING VESSEL PERSONNEL (STCW-F), 1995

Revised annex to the 1995 STCW-F Convention

CHAPTER I

General provisions

Regulation I/1

Definitions

1 For the purpose of this annex, the following definitions apply:

.1 Regulations means regulations contained in the annex to the Convention;

.2 Approved means approved by the Party in accordance with these regulations;

.3 Skipper means the person having command of a fishing vessel;

.4 Officer means a member of the crew, other than the skipper, designated as such by national law or regulations or, in the absence of such designation, by collective agreement or custom;

.5 Officer in charge of a navigational watch means an officer qualified in accordance with the provisions of regulation II/2 or II/4 of this Convention;

.6 Engineer officer means an officer qualified in accordance with the provisions

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.6 Engineer officer means an officer qualified in accordance with the provisions of regulation II/5-1-1, II/5-1-2 or II/5-2 of this Convention;

.7 Chief engineer officer means the senior engineer officer responsible for the mechanical propulsion and operation and maintenance of mechanical and electrical installations of the vessel;

.8 Second engineer officer means the engineer officer next in rank to the chief engineer officer and upon whom the responsibility for the mechanical propulsion and the operation and maintenance of the mechanical and electrical installations of the vessel will fall in the event of t he incapacity of the chief engineer officer;

.9 Radio operator means a person holding an appropriate certificate issued or recognized by an Administration under the provisions of the Radio Regulations;

.10 Radio Regulations means the Radio Regulations complementing the Constitution and Convention of the International Telecommunication Union

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.10 Radio Regulations means the Radio Regulations complementing the Constitution and Convention of the International Telecommunication Union which is in force at any given time;
.11 1978 STCW Convention means the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978;
.12 1993 Torremolinos Protocol means the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;
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.13 2012 Cape Town Agreement means the Cape Town Agreement of 2012 on the Implementation of the Provisions of the 1993 Torremolinos Protocol relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;

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relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;
.14 Month means a calendar month or 30 days made up of periods of less than one month;
.15 Seagoing service means service on board a vessel relevant to the issue or revalidation of a certificate or other qualification;
.16 Propulsion power means the total maximum continuous rated output power, in kilowatts, of all the vessel's main propulsion machinery which appears on the vessel's certificate of registry or other official document;
.17 Limited waters means those waters in the vicinity of a Party as defined by its Administration within which a degree of safety is considered to exist which enables the standards of qualification and certification for all fishing vessel personnel to be set at a lower level than for service outside the defined limits. In determining the extent of limited waters, the Administration shall take into
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In determining the extent of limited waters, the Administration shall take into consideration the guidelines developed by the Organization;

.18 Unlimited waters mean waters beyond limited waters;

.19 Length (L) shall be taken as 96% of the total length on a waterline at 85% of the least moulded depth measured from the keel line, or as the length from the foreside of the stem to the axis of the rudder stock on that waterline, if that be greater. In vessels designed with rake of keel the waterline on which this length is measured shall be parallel to the designed waterline;

.20 Moulded depth is the vertical distance measured from the keel line to the top of the working deck beam at side;

.21 STCW-F Code means the Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel Code, as adopted by resolution MSC.562(108), as may be amended by the Organization;

.22 Owner means the owner of the fishing vessel or any other organization or

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MSC.562(108), as may be amended by the Organization;
.22 Owner means the owner of the fishing vessel or any other organization or person, such as the manager, agent, operator, company, authorized representative or bareboat charterer, who has assumed the responsibility for the operation of the vessel from the owner an d who, on assuming such responsibility, has agreed to take over the duties and responsibilities imposed on fishing vessel owners in accordance with the Convention, regardless of whether any other organization or person fulfils certain of the duties or responsibilities on behalf of the fishing vessel owner;
.23 Fishing vessel personnel means every person employed or engaged in any capacity or carrying out an occupation on board any fishing vessel, including persons working on board who are paid on the basis of a share of the catch but excluding pilots, naval personnel, other persons in the permanent service
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but excluding pilots, naval personnel, other persons in the permanent service of a government, shore -based persons carrying out work aboard a fishing vessel and fisheries observers;

.24 Function means a group of tasks, duties and responsibilities, as specified in the STCW-F Code, necessary for fishing vessel operation, safety of life at sea or protection of the marine environment;

.25 Fishing training vessel means a dedicated training vessel, designed for catching and storing fish, which provides a training opportunity for demonstration and assessment of the competences required by the provisions of chapter II of this annex;

.26 GMDSS radio operator means a person who is qualified in accordance with

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provisions of chapter II of this annex;
.26 GMDSS radio operator means a person who is qualified in accordance with the provisions of regulation II/6 of the Convention;
.27 Certificate of competency means a certificate issued and endorsed for skippers, officers and GMDSS radio operators in accordance with the provisions of chapter II of this annex and entitling the lawful holder thereof to serve in the capacity and perform the functions involved at t he level of responsibility specified therein; and
.28 Certificate of proficiency means a certificate, other than a certificate of competency issued to fishing vessel personnel, stating that the relevant requirements of training, competencies or seagoing service in the Convention have been met.
2 These regulations are supplemented by the mandatory provisions contained in part A of the STCW-F Code and:
.1 any reference to a requirement in a regulation also constitutes a reference to
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of the STCW-F Code and:
.1 any reference to a requirement in a regulation also constitutes a reference to the corresponding section of part A of the STCW-F Code;
.2 in applying these regulations, the related guidance and explanatory material contained in part B of the STCW-F Code should be taken into account to the greatest degree possible in order to achieve a more uniform implementation of the Convention provisions on a global basis;
.3 amendments to part A of the STCW -F Code shall be adopted, brought into force and take effect in accordance with the provisions of article 10 of the Convention concerning the amendment procedure applicable to the annex; and
.4 part B of the STCW -F Code shall be amended by the Maritime Safety Committee in accordance with its rules of procedure.

Regulation I/2

Application

1 The Administration of a Party, if it considers it unreasonable or impracticable to apply

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Regulation I/2
Application
1 The Administration of a Party, if it considers it unreasonable or impracticable to apply the full requirements of regulations II/3, II/4 and II/5-1-1, II/5-1-2 or II/5-2 and the requirement of the use of the English language to personnel serving on boar d a fishing vessel of less than 45 metres in length operating exclusively from its ports and fishing within its limited waters, may determine which of these regulations should not apply, wholly or in part, to such personnel, without derogation from the principles of safety in the Convention. In such a case, the Administration concerned shall report to the Secretary -General on the details of the measures it has taken with respect to the training and certification of such personnel.
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2 For the purpose of this Convention, the Administration may decide to use the following gross tonnage in place of length (L) as the basis for measurement for all chapters:

.1 a gross tonnage of 300 shall be considered equivalent to a length (L) of 24 metres; and

.2 a gross tonnage of 950 shall be considered equivalent to a length (L) of 45 metres.

Regulation I/3

Certificates and endorsements

1 Certificates of competency for fishing vessel personnel shall only be issued by the Administration if the requirements for service, age, medical fitness, training, qualification and examinations are met in accordance with these regulations.

2 A certificate of competency issued by a Party in compliance with paragraph 1 shall be

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examinations are met in accordance with these regulations.
2 A certificate of competency issued by a Party in compliance with paragraph 1 shall be endorsed by that Party attesting the issue of that certificate in the form as prescribed in format 1 or 2 of section A-I/3 of the STCW-F Code.
3 Certificates and endorsements shall be issued in the official language or languages of the issuing country. If the language used is not English, the text shall include a translation into that language.
4 In respect of radio operators, Parties may:
.1 include the additional knowledge required by regulation II/6 in the examination for the issue of a certificate complying with the Radio Regulations; or
.2 issue a separate certificate indicating that the holder has the additional knowledge required by regulation II/6.
5 The Administration which has recognized a certificate issued by or under the authority
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knowledge required by regulation II/6.
5 The Administration which has recognized a certificate issued by or under the authority of another Party in compliance with regulation I/7 shall issue an endorsement attesting the recognition of that certificate in the form prescribed in format 3 of section A-I/3 of the STCW-F Code.
6 The endorsement shall expire as soon as the certificate endorsed expires or is withdrawn, suspended or cancelled by the Party which issued it and, in any case, not more than five years after the date of issue.
7 Appropriate certificates of competency issued under the provisions of the 1978 STCW Convention for the holder to serve as a chief engineer officer, an engineer officer or GMDSS radio operator shall be deemed to be a corresponding certificate for the purposes of paragraph 1 with regard to fishing vessels.
8 Medical certificates issued in accordance with the provisions of regulation I/9 of
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paragraph 1 with regard to fishing vessels.
8 Medical certificates issued in accordance with the provisions of regulation I/9 of the 1978 STCW Convention shall be accepted as valid for the personnel of fishing vessels.
9 Subject to the variations permitted under formats 1, 2 and 3 of section A-I/3 of the STCW-F Code, Administrations may use a format different from the format given in the section provided that such format contains, as a minimum, the required information and that the particulars are inserted in Roman characters and Arabic figures.
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Regulation I/4
Control procedures
1 Control exercised by a duly authorized officer under article 8 shall be limited to the following:

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Regulation I/4
Control procedures
1 Control exercised by a duly authorized officer under article 8 shall be limited to the following:
.1 verification that all fishing vessel personnel serving on board who are required to be certificated by this Convention are so certificated or hold the required dispensation. Such certificates shall be accepted unless there are clear grounds for believing that a certificate has been fraudulently obtained or that the holder of a certificate is not the person to whom that certificate was originally issued; and
.2 assessment of the ability of the fishing vessel personnel to maintain watchkeeping standards as required by the Convention if there are clear grounds for believing that such standards are not being maintained, because the following have occurred:
.1 the vessel has been involved in a collision, grounding or stranding; or
.2 there has been a discharge of substances from the vessel when
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.1 the vessel has been involved in a collision, grounding or stranding;
or
.2 there has been a discharge of substances from the vessel when under way, at anchor or at berth which is illegal under international conventions; or
.3 the vessel has been manoeuvred in an erratic or unsafe manner, whereby routeing measures adopted by the Organization, or safe navigation practices and procedures, have not been followed; or
.4 the vessel is otherwise being operated in such a manner as to pose a danger to persons, property or the environment.

2 In the event that deficiencies are found under paragraph 1, the officer carrying out the control shall forthwith inform, in writing, the skipper of the vessel and the Administration, so that appropriate action may be taken. Such notification shall specif y the details of the deficiencies found and the grounds on which the Party determines that these deficiencies pose a danger to persons, property or the environment.

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deficiencies found and the grounds on which the Party determines that these deficiencies pose a danger to persons, property or the environment.

3 Deficiencies which may be deemed to pose a danger to persons, property or the environment include the following:

.1 failure of persons, required to hold a certificate, to have an appropriate certificate or dispensation;

.2 failure of navigational or engineering watch arrangements to conform to the requirements specified for the vessel by the Administration;

.3 absence in a watch of a person qualified to operate equipment essential to safe navigation, safety radio communications or the prevention of pollution; or

.4 inability to provide rested persons for the first watch at the commencement of a voyage, and for subsequent relieving watches.

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Regulation I/5
Communication of information
1 The Secretary -General shall, on request, provide Parties with any information communicated under article 4.
2 A Party which fails to communicate information required by article 4 within 24 months after the date of entry into force of the Convention for a Party shall not be entitled to claim the privileges of this Convention until such time as the information has been received by the Secretary-General.
Regulation I/6
Administration of certification arrangements
1 Each Party undertakes to establish and maintain a means of ensuring that programmes incorporating such instruction and practical training as is necessary to achieve the competency standards are regularly monitored to ensure their effectiveness.

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the competency standards are regularly monitored to ensure their effectiveness.
2 Each Party undertakes, to the extent practicable, to maintain a register or registers of all certificates and endorsements specified in regulations I/3 and II/1 to II/6 which are issued, have expired, or have been revalidated, reported lost, suspended or cancelled, and of dispensations issued, and provide information on the status of such certificates, endorsements and dispensations when so requested by another Party.

Regulation I/7

Recognition of certificates

1 Each Administration shall ensure, in order to recognize, by endorsement in accordance with regulation I/3, a certificate issued by or under the authority of another Party, that the requirements for standards of competence, as well as the issue and endorsement of certificates by that Party, are fully complied with.
2 Certificates issued by or under the authority of a non-Party shall not be recognized.
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that Party, are fully complied with.
2 Certificates issued by or under the authority of a non-Party shall not be recognized.
3 Notwithstanding the requirement of paragraph 1 of this regulation and paragraph 5 of regulation I/3, an Administration may, if circumstances require, allow a person to serve for a period not exceeding three months on board a vessel entitled to fly its flag while holding an appropriate and valid certificate issued by another Party without it being endorsed as required by paragraph 5 of regulation I/3 provided that documented proof is made available that application for an endorsement has been submitted to the Administration.

Regulation I/8

Transitional provisions

1 A certificate of competency or of service in a capacity for which this Convention requires a certificate and which before entry into force of the Convention for a Party is issued in accordance

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certificate and which before entry into force of the Convention for a Party is issued in accordance with the laws of that Party or the Radio Regulations shall be recognized as valid for service after entry into force of the Convention for that Party.

2 After the entry into force of the Convention for a Party, it may continue to issue certificates of competency in accordance with its previous practices for a period not exceeding five years. Such certificates shall be recognized as valid for the purpose of the Convention. During this transitional period, such certificates shall be issued only to persons who had commenced their sea service before entry into force of the Convention for that Party within the specific vessel department to which those certificates relate. The Party shall ensure that all other candidates for certification shall be examined and certificated in accordance with the Convention.

RESOLUTION MSC.561(108) (adopted on 23 May 2024)

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examined and certificated in accordance with the Convention.

3 A Party may, within two years after entry into force of the Convention for that Party, issue a certificate of service to fishing vessel personnel who hold neither an appropriate certificate under the Convention nor a certificate of competency issued unde r its laws before entry into force of the Convention for that Party but who have:

.1 served in the capacity for which they seek a certificate of service for not less than three years at sea within the last seven years preceding entry into force of the Convention for that Party;

.2 produced evidence that they have performed that service satisfactorily; and

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of the Convention for that Party;
.2 produced evidence that they have performed that service satisfactorily; and
.3 satisfied the Party as to medical fitness, including eyesight and hearing,
taking into account their age at the time of application.
For the purpose of the Convention, a certificate of service issued under this paragraph shall be regarded as the equivalent of a certificate issued under the Convention.
Regulation I/9
Dispensation
1 In circumstances of exceptional necessity, an Administration, if in its opinion this will not cause danger to persons, property or the environment, may issue a dispensation permitting a person to serve in a specified fishing vessel for a specified period not exceeding six months in a capacity, other than that of the radio operator, except as provided by the relevant Radio Regulations, for which the person does not hold the appropriate certificate, provided that the
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Regulations, for which the person does not hold the appropriate certificate, provided that the person to whom the dispensation is issued shall be adequately qualified to fill the vacant post in a safe manner, to the satisfaction of the Administration.

2 Any dispensation granted for a post shall be granted only to a person properly certificated to fill the post immediately below it. Where certification of the post below is not required by the Convention, a dispensation may be issued to a person whose competence and experience are, in the opinion of the Administration, clearly equivalent to the requirements for the post to be filled, provided that, if such a person holds no appropriate certificate, the person shall be required to pass a test accepted by th e Administration as demonstrating that such a dispensation may safely be issued. In addition, the Administration shall ensure that the post in

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dispensation may safely be issued. In addition, the Administration shall ensure that the post in question is filled by the holder of an appropriate certificate as soon as possible.

3 Each Party shall, as soon as possible after 1 January each year, send a report to the Secretary-General giving information of the total number of dispensations in respect of each capacity for which a certificate is required, including nil returns.

Regulation I/10

Equivalents

1 The Convention shall not prevent a Party from retaining or adopting other educational and training arrangements, including those involving seagoing service and shipboard organization especially adapted to technical developments and to special types of vessels, provided that the level of seagoing service, knowledge and efficiency as regards navigational and technical handling of vessels ensures a degree of safety at sea and has a preventive effect

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and technical handling of vessels ensures a degree of safety at sea and has a preventive effect
as regards pollution at least equivalent to the requirements of the Convention.
2 Details of such arrangements shall be included in the report under article 4.
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Regulation I/11
Use of simulators
1 The performance standards and other provisions set forth in section A-I/11 and such
other requirements as are prescribed in part A of the STCW -F Code for any certificate
concerned shall be complied with in respect of:
.1 all simulator-based training;
.2 any assessment of competency required by part A of the STCW -F Code
which is carried out by means of a simulator; and
.3 any demonstration, by means of a simulator, of continued proficiency
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which is carried out by means of a simulator; and
.3 any demonstration, by means of a simulator, of continued proficiency required by part A of the STCW-F Code.

Regulation I/12

Medical standards

1 Each Party shall establish standards of medical fitness for fishing vessel personnel and procedures for the issue of a medical certificate in accordance with the provisions of this regulation and of section A-I/12 of the STCW-F Code.

2 Each Party shall ensure that those responsible for assessing the medical fitness of fishing vessel personnel are medical practitioners recognized by the Party for the purpose of fishing vessel personnel medical examinations, in accordance with the provis ions of section A-I/12 of the STCW-F Code.

3 Every crew member holding a certificate issued under the provisions of the Convention who is serving at sea shall also hold a valid medical certificate issued in

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Convention who is serving at sea shall also hold a valid medical certificate issued in accordance with the provisions of this regulation and of section A-I/12 of the STCW-F Code.

4 Every candidate for certification shall:

.1 be not less than 16 years of age; or

.2 be not less than 15 years of age provided that the candidate is authorized by the competent authority in accordance with national laws and practice;

.3 provide satisfactory proof of his or her identity; and

.4 meet the applicable medical fitness standards established by the Party.

5 Medical certificates shall remain valid for a maximum period of two years unless the crew member is under the age of 18, in which case the maximum period of validity shall be one year.

6 If the period of validity of a medical certificate expires in the course of a voyage, then the medical certificate shall continue in force until the next port of call where a medical

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the medical certificate shall continue in force until the next port of call where a medical practitioner recognized by the Party is available, provided that the period shall not exceed three months.

7 In urgent cases the Administration may permit a crew member to work without a valid medical certificate until the next port of call where a medical practitioner recognized by the Party is available, provided that:

.1 the period of permission does not exceed three months; and

.2 the crew member concerned is in possession of an expired medical certificate of recent date.

CHAPTER II

Certification of skippers, officers in charge of a navigational watch, engineer officers and radio operators

Regulation II/1

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CHAPTER II

Certification of skippers, officers in charge of a navigational watch, engineer officers and radio operators

Regulation II/1

Mandatory minimum requirements for certification of skippers on fishing vessels of 24 metres in length and over operating in unlimited waters

1 Every skipper on a fishing vessel of 24 metres in length and over operating in unlimited waters shall hold a certificate of competency.

2 Every candidate for certification shall:

.1 meet the requirements for certification as an officer in charge of a navigational watch on fishing vessels of 24 metres in length and over operating in unlimited waters, and have approved seagoing service of not less than 12 months as an officer in charge of a navigational watch or skipper on fishing vessels of not less than 12 metres in length. However, the Party may allow the substitution of a period not exceeding six months of approved seagoing service as an officer in charge of

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not exceeding six months of approved seagoing service as an officer in charge of a navigational watch on seagoing ships covered by the 1978 STCW Convention; and

.2 meet the standard of competence specified in section A-II/1 of the STCW-F Code.

3 A candidate who holds a valid certificate of competency issued in accordance with the provisions of the 1978 STCW Convention need not be reassessed in those standards of competence listed in section A -II/1 of the STCW -F Code that were required at a highe r or equivalent level for the issuance of the corresponding 1978 STCW Convention certificate.

Regulation II/2

Mandatory minimum requirements for certification of officers in charge of a navigational watch on fishing vessels of 24 metres in length and over operating in unlimited waters

1 Every officer in charge of a navigational watch on a fishing vessel of 24 metres in length and over operating in unlimited waters shall hold a certificate of competency.

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length and over operating in unlimited waters shall hold a certificate of competency.
2 Every candidate for certification shall:
.1 be not less than 18 years of age;
.2 have approved seagoing service of not less than:
.1 12 months on fishing vessels or fishing training vessels of not less than 12 metres in length as part of an approved training programme which includes onboard training that meets the requirements of section A -II/2 of the STCW -F Code and is documented in an approved training record book; or

.2 two years in the deck department on fishing vessels of not less than 12 metres in length. However, the Administration may allow the substitution of the seagoing service by a period of special training
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than 12 metres in length. However, the Administration may allow the substitution of the seagoing service by a period of special training not exceeding one year, provided that the period of the special training programme shall be at least equivalent in value to the period of the required seagoing service it substitutes or by a period of approved seagoing service evidenced by an approved record book covered by the 1978 STCW Convention;

.3 meet the standard of competence specified in section A-II/2 of the STCW-F Code; and

.4 meet the applicable requirements of regulation II/6, as appropriate for performing designated radio duties in accordance with the Radio Regulations.

3 A candidate who holds a valid certificate of competency issued in accordance with the provisions of the 1978 STCW Convention need not be reassessed in those standards of competence listed in section A -II/2 of the STCW -F Code that were required at a highe r or

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competence listed in section A -II/2 of the STCW -F Code that were required at a highe r or equivalent level for the issuance of the corresponding 1978 STCW Convention certificate.

Regulation II/3

Mandatory minimum requirements for certification of skippers on fishing vessels of 24 metres in length and over operating in limited waters

1 Every skipper on a fishing vessel of 24 metres in length and over operating in limited waters shall, unless they hold certificates issued in compliance with regulation II/1, hold a certificate of competency issued in compliance with at least the provisions of this regulation.

2 Every candidate for certification shall:

.1 meet the requirements for certification as an officer in charge of a navigational watch on fishing vessels of 24 metres in length and over operating in limited or unlimited waters, and have approved seagoing service of not less than 12 months as an officer in charge of a navigational watch or

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of not less than 12 months as an officer in charge of a navigational watch or skipper on fishing vessels of not less than 12 metres in length. However, a Party may allow the substitution of a period not exceeding six months o f approved seagoing service as an officer in charge of a navigational watch on seagoing ships covered by the 1978 STCW Convention; and

.2 meet the standard of competence specified in section A-II/3 of the STCW-F Code.

3 The Party, bearing in mind the effect on the safety of all vessels and structures which may be operating in the same limited waters, should consider the limited waters it has defined in accordance with the definition given in regulation I/1 and determine any additional material that should be included in the standard of competence.

4 A candidate who holds a valid certificate of competency issued in accordance with the provisions of the 1978 STCW Convention need not be reassessed in those standards of

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the provisions of the 1978 STCW Convention need not be reassessed in those standards of competence listed in section A -II/3 of the STCW -F Code that were required at a highe r or equivalent level for the issuance of the corresponding 1978 STCW Convention certificate.

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AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND WATCHKEEPING FOR FISHING VESSEL PERSONNEL, 1995 (Revised annex to the 1995 STCW-F Convention)

Regulation II/4

Mandatory minimum requirements for certification of officers in charge of a navigational watch on fishing vessels of 24 metres in length and over operating in limited waters

1 Every officer in charge of a navigational watch on a fishing vessel of 24 metres in length and over operating in limited waters shall either hold a certificate issued in compliance with regulation II/2 or hold a certificate of competency issued in compliance with at least the

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with regulation II/2 or hold a certificate of competency issued in compliance with at least the provisions of this regulation.

2 Every candidate for certification shall:

.1 be not less than 18 years of age;

.2 have approved seagoing service of not less than:

.1 12 months on fishing vessels or fishing training vessels of not less than 12 metres in length as part of an approved training programme which includes onboard training that meets the requirements of section A -II/4 of the STCW -F Code and is documented in an approved training record book; or

.2 two years in the deck department on fishing vessels of not less than 12 metres in length. However, the Administration may allow the substitution of the seagoing service by a period of special training not exceeding one year, provided that the period of the special training programme shall be at least equivalent in value to the period of the required seagoing service it substitutes or by a period of

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training programme shall be at least equivalent in value to the period
of the required seagoing service it substitutes or by a period of
approved seagoing service evidenced by an approved record book
covered by the 1978 STCW Convention;
.3 meet the standard of competence specified in section A-II/4 of the STCW-F
Code; and
.4 meet the appropriate requirements for performing designated radio duties in
accordance with the Radio Regulations.
3 A candidate who holds a valid certificate of competency issued in accordance with
the provisions of the 1978 STCW Convention need not be reassessed in those standards of
competence listed in section A -II/4 of the STCW-F Code, which were required at a hig her or
equivalent level for the issuance of the corresponding 1978 STCW Convention certificate.
Regulation II/5-1-1
Mandatory minimum requirements for certification of chief engineer officers and
second engineer officers on fishing vessels powered by main propulsion machinery
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second engineer officers on fishing vessels powered by main propulsion machinery
of 3,000 kW propulsion power or more
1 Every chief engineer officer and second engineer officer on a seagoing fishing vessel
powered by main propulsion machinery of 3,000 kW propulsion power or more shall hold a
certificate of competency.
2 Every candidate for certification shall:
.1 meet the requirements for certification as an officer in charge of an
engineering watch on fishing vessels powered by main propulsion machinery
of 750 kW propulsion power or more and have approved seagoing service in
that capacity:

.1 for certification as second engineer officer, have not less
than 12 months as qualified engineer officer; and

.1 for certification as second engineer officer, have not less
than 12 months as qualified engineer officer; and
.2 for certification as chief engineer officer, have not less
than 36 months; however, this period may be reduced to not less
than 24 months if not less than 12 months of such seagoing service
has been served as second engineer officer; and
.2 have completed approved education and training and meet the standard of
competence specified in section A-II/5-1-1 of the STCW-F Code.
Regulation II/5-1-2
Mandatory minimum requirements for certification of chief engineer officers and
second engineer officers on fishing vessels powered by main propulsion machinery of
between 750 kW and 3,000 kW propulsion power
1 Every chief engineer officer and second engineer officer on a seagoing fishing vessel
powered by main propulsion machinery of between 750 kW and 3,000 kW propulsion power
shall hold a certificate of competency.
2 Every candidate for certification shall:

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shall hold a certificate of competency.
2 Every candidate for certification shall:
.1 meet the requirements for certification as an officer in charge of an engineering watch on fishing vessels powered by main propulsion machinery of 750 kW propulsion power or more and:
.1 for certification as second engineer officer, have not less than 12 months of approved seagoing service as assistant engineer officer or engineer officer; and
.2 for certification as chief engineer officer, have not less than 24 months of approved seagoing service of which not less than 12 months shall be served while qualified to serve as second engineer officer; and
.2 have completed approved education and training and meet the standard of competence specified in section A-II/5-1-2 of the STCW-F Code.
3 Every engineer officer who is qualified to serve as second engineer officer on fishing vessels powered by main propulsion machinery of 3,000 kW propulsion or more, may serve
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vessels powered by main propulsion machinery of 3,000 kW propulsion or more, may serve as chief engineer officer on fishing vessels powered by main propulsion machinery of less than 3,000 kW propulsion power, provided the certificate is so endorsed.

Regulation II/5-2

Mandatory minimum requirements for certification of officers in charge of an engineering watch in a manned engine -room or designated duty engineers in a periodically unmanned engine-room on fishing vessels powered by main propulsion machinery of 750 kW propulsion power or more

1 Every officer in charge of an engineering watch in a manned engine -room or designated duty engineer officer in a periodically unmanned engine -room serving on a seagoing fishing vessel powered by main propulsion machinery of 750 kW propulsion power or more shall hold a certificate of competency.

RESOLUTION MSC.561(108) (adopted on 23 May 2024)

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or more shall hold a certificate of competency.

2 Every candidate for certification shall:
.1 be not less than 18 years of age;
.2 have completed 12 months of combined workshop skills training and approved seagoing service of which not less than six months must be served on board fishing vessels or fishing training vessels as part of an approved training programme which includes onboa rd training that meets the requirements of section A-II/5-2 of the STCW-F Code and is documented in an approved training record book; or
.3 have completed 12 months of combined workshop skills training and approved seagoing service of which not less than six months must be served on ships
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seagoing service of which not less than six months must be served on ships or training ships being operated in accordance with the 1978 STCW Convention as part of an approved training programme which includes onboard training that meets the requirements of section A -II/5-2 of the STCW-F Code and is documented in an approved training record book; or

.4 have approved seagoing service of not less than 12 months in the engine - room. However, the Administration may allow, as deemed necessary, the substitution of up to six months of the seagoing service by a period of special training such as workshop skill s training, provided that the special training programme is equivalent in value to the period of the required seagoing service it substitutes; and

.5 meet the standard of competence specified in section A -II/5-2 of the STCW-F Code.

3 The Party may vary the requirements for standard of competence and seagoing

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STCW-F Code.
3 The Party may vary the requirements for standard of competence and seagoing service for officers of fishing vessels engaged in voyages in limited waters bearing in mind the power of the propulsion machinery and the effect on the safety of all fishing vessels which may be operating in the same waters.
4 Training to achieve the necessary theoretical knowledge and practical experience shall take into account relevant international regulations and recommendations.
Regulation II/6
Mandatory minimum requirements for certification of GMDSS radio operators on board fishing vessels
Explanatory note
Mandatory provisions relating to radio watchkeeping are set forth in the Radio Regulations and in the 2012 Cape Town Agreement. Provisions for radio maintenance are set forth in the 2012 Cape Town Agreement. The referred provisions are mandatory in the Radio Regulations and will be mandatory in the 2012 Cape Town Agreement when it enters into force.
Application
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will be mandatory in the 2012 Cape Town Agreement when it enters into force.

Application

1 Except as provided in paragraph 2, the provisions of this regulation shall apply to radio operators on fishing vessels operating within the Global Maritime Distress and Safety System (GMDSS) as prescribed by the international conventions.

RESOLUTION MSC.561(108) (adopted on 23 May 2024)

AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND WATCHKEEPING FOR FISHING VESSEL PERSONNEL, 1995 (Revised annex to the 1995 STCW-F Convention)

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THE MARITIME SAFETY COMMITTEE,
RECALLING Article 28(b) of the Convention on the International Maritime Organization concerning the functions of the Committee,
RECALLING ALSO article 10 of the International Convention on Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel, 1995 (1995 STCW -F Convention), concerning the procedures for amending the 1995 STCW-F Convention,
HAVING CONSIDERED, at its 108th session, draft amendments to the annex to the 1995

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HAVING CONSIDERED, at its 108th session, draft amendments to the annex to the 1995 STCW-F Convention, circulated in accordance with article 10.2.1 thereof,
1 ADOPTS, in accordance with article 10.2.4 of the 1995 STCW -F Convention, amendments to the annex to the 1995 STCW-F Convention, the text of which is set out in the annex to the present resolution;
2 DETERMINES, in accordance with article 10.2.7.2 of the 1995 STCW-F Convention, that said amendments shall be deemed to have been accepted on 1 July 2025, unless, prior to that date, more than one third of the Parties have notified the Secretary -General of the Organization that they object to the amendments;
3 INVITES the Parties to note that, in accordance with article 10.2.9 of the 1995 STCW-F Convention, the amendments annexed hereto shall enter into force on 1 January 2026 upon their acceptance in accordance with paragraph 2 above;
4 REQUESTS the Secretary -General, for the purposes of article 10.2.5

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on 1 January 2026 upon their acceptance in accordance with paragraph 2 above;
4 REQUESTS the Secretary -General, for the purposes of article 10.2.5
of the 1995 STCW-F Convention, to transmit certified copies of the present resolution and the
text of the amendments contained in the annex to all Parties to the 1995 STCW-F Convention;
5 ALSO REQUESTS the Secretary-General to transmit copies of this resolution and its
annex to Members of the Organization which are not Parties to the 1995 STCW-F Convention.
6 FURTHER REQUESTS the Secretary-General to prepare a consolidated certified text
of the 1995 STCW-F Convention.
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
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ANNEX
AMENDMENTS TO THE
INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND

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ANNEX

AMENDMENTS TO THE

INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND WATCHKEEPING FOR FISHING VESSEL PERSONNEL (STCW-F), 1995

Revised annex to the 1995 STCW-F Convention

CHAPTER I

General provisions

Regulation I/1

Definitions

1 For the purpose of this annex, the following definitions apply:

.1 Regulations means regulations contained in the annex to the Convention;

.2 Approved means approved by the Party in accordance with these regulations;

.3 Skipper means the person having command of a fishing vessel;

.4 Officer means a member of the crew, other than the skipper, designated as such by national law or regulations or, in the absence of such designation, by collective agreement or custom;

.5 Officer in charge of a navigational watch means an officer qualified in accordance with the provisions of regulation II/2 or II/4 of this Convention;

.6 Engineer officer means an officer qualified in accordance with the provisions

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.6 Engineer officer means an officer qualified in accordance with the provisions of regulation II/5-1-1, II/5-1-2 or II/5-2 of this Convention;

.7 Chief engineer officer means the senior engineer officer responsible for the mechanical propulsion and operation and maintenance of mechanical and electrical installations of the vessel;

.8 Second engineer officer means the engineer officer next in rank to the chief engineer officer and upon whom the responsibility for the mechanical propulsion and the operation and maintenance of the mechanical and electrical installations of the vessel will fall in the event of t he incapacity of the chief engineer officer;

.9 Radio operator means a person holding an appropriate certificate issued or recognized by an Administration under the provisions of the Radio Regulations;

.10 Radio Regulations means the Radio Regulations complementing the Constitution and Convention of the International Telecommunication Union

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.10 Radio Regulations means the Radio Regulations complementing the Constitution and Convention of the International Telecommunication Union which is in force at any given time;
.11 1978 STCW Convention means the International Convention on Standards of Training, Certification and Watchkeeping for Seafarers, 1978;
.12 1993 Torremolinos Protocol means the Torremolinos Protocol of 1993 relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
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.13 2012 Cape Town Agreement means the Cape Town Agreement of 2012 on the Implementation of the Provisions of the 1993 Torremolinos Protocol relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;

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relating to the Torremolinos International Convention for the Safety of Fishing Vessels, 1977;

.14 Month means a calendar month or 30 days made up of periods of less than one month;

.15 Seagoing service means service on board a vessel relevant to the issue or revalidation of a certificate or other qualification;

.16 Propulsion power means the total maximum continuous rated output power, in kilowatts, of all the vessel's main propulsion machinery which appears on the vessel's certificate of registry or other official document;

.17 Limited waters means those waters in the vicinity of a Party as defined by its Administration within which a degree of safety is considered to exist which enables the standards of qualification and certification for all fishing vessel personnel to be set at a lower level than for service outside the defined limits. In determining the extent of limited waters, the Administration shall take into

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In determining the extent of limited waters, the Administration shall take into consideration the guidelines developed by the Organization;
.18 Unlimited waters mean waters beyond limited waters;
.19 Length (L) shall be taken as 96% of the total length on a waterline at 85% of the least moulded depth measured from the keel line, or as the length from the foreside of the stem to the axis of the rudder stock on that waterline, if that be greater. In vessels designed with rake of keel the waterline on which this length is measured shall be parallel to the designed waterline;
.20 Moulded depth is the vertical distance measured from the keel line to the top of the working deck beam at side;
.21 STCW-F Code means the Standards of Training, Certification and Watchkeeping for Fishing Vessel Personnel Code, as adopted by resolution MSC.562(108), as may be amended by the Organization;
.22 Owner means the owner of the fishing vessel or any other organization or
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MSC.562(108), as may be amended by the Organization;
.22 Owner means the owner of the fishing vessel or any other organization or person, such as the manager, agent, operator, company, authorized representative or bareboat charterer, who has assumed the responsibility for the operation of the vessel from the owner an d who, on assuming such responsibility, has agreed to take over the duties and responsibilities imposed on fishing vessel owners in accordance with the Convention, regardless of whether any other organization or person fulfils certain of the duties or responsibilities on behalf of the fishing vessel owner;
.23 Fishing vessel personnel means every person employed or engaged in any capacity or carrying out an occupation on board any fishing vessel, including persons working on board who are paid on the basis of a share of the catch but excluding pilots, naval personnel, other persons in the permanent service
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but excluding pilots, naval personnel, other persons in the permanent service of a government, shore -based persons carrying out work aboard a fishing vessel and fisheries observers;

.24 Function means a group of tasks, duties and responsibilities, as specified in the STCW-F Code, necessary for fishing vessel operation, safety of life at sea or protection of the marine environment;

.25 Fishing training vessel means a dedicated training vessel, designed for catching and storing fish, which provides a training opportunity for demonstration and assessment of the competences required by the provisions of chapter II of this annex;

.26 GMDSS radio operator means a person who is qualified in accordance with

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provisions of chapter II of this annex;
.26 GMDSS radio operator means a person who is qualified in accordance with the provisions of regulation II/6 of the Convention;
.27 Certificate of competency means a certificate issued and endorsed for skippers, officers and GMDSS radio operators in accordance with the provisions of chapter II of this annex and entitling the lawful holder thereof to serve in the capacity and perform the functions involved at t he level of responsibility specified therein; and
.28 Certificate of proficiency means a certificate, other than a certificate of competency issued to fishing vessel personnel, stating that the relevant requirements of training, competencies or seagoing service in the Convention have been met.
2 These regulations are supplemented by the mandatory provisions contained in part A of the STCW-F Code and:
.1 any reference to a requirement in a regulation also constitutes a reference to
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of the STCW-F Code and:
.1 any reference to a requirement in a regulation also constitutes a reference to the corresponding section of part A of the STCW-F Code;
.2 in applying these regulations, the related guidance and explanatory material contained in part B of the STCW-F Code should be taken into account to the greatest degree possible in order to achieve a more uniform implementation of the Convention provisions on a global basis;
.3 amendments to part A of the STCW -F Code shall be adopted, brought into force and take effect in accordance with the provisions of article 10 of the Convention concerning the amendment procedure applicable to the annex; and
.4 part B of the STCW -F Code shall be amended by the Maritime Safety Committee in accordance with its rules of procedure.

Regulation I/2

Application

1 The Administration of a Party, if it considers it unreasonable or impracticable to apply

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Regulation I/2
Application
1 The Administration of a Party, if it considers it unreasonable or impracticable to apply the full requirements of regulations II/3, II/4 and II/5-1-1, II/5-1-2 or II/5-2 and the requirement of the use of the English language to personnel serving on boar d a fishing vessel of less than 45 metres in length operating exclusively from its ports and fishing within its limited waters, may determine which of these regulations should not apply, wholly or in part, to such personnel, without derogation from the principles of safety in the Convention. In such a case, the Administration concerned shall report to the Secretary -General on the details of the measures it has taken with respect to the training and certification of such personnel.
RESOLUTION MSC.561(108) (adopted on 23 May 2024)
AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
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2 For the purpose of this Convention, the Administration may decide to use the following gross tonnage in place of length (L) as the basis for measurement for all chapters:

.1 a gross tonnage of 300 shall be considered equivalent to a length (L) of 24 metres; and

.2 a gross tonnage of 950 shall be considered equivalent to a length (L) of 45 metres.

Regulation I/3

Certificates and endorsements

1 Certificates of competency for fishing vessel personnel shall only be issued by the Administration if the requirements for service, age, medical fitness, training, qualification and examinations are met in accordance with these regulations.

2 A certificate of competency issued by a Party in compliance with paragraph 1 shall be

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examinations are met in accordance with these regulations.
2 A certificate of competency issued by a Party in compliance with paragraph 1 shall be endorsed by that Party attesting the issue of that certificate in the form as prescribed in format 1 or 2 of section A-I/3 of the STCW-F Code.
3 Certificates and endorsements shall be issued in the official language or languages of the issuing country. If the language used is not English, the text shall include a translation into that language.
4 In respect of radio operators, Parties may:
.1 include the additional knowledge required by regulation II/6 in the examination for the issue of a certificate complying with the Radio Regulations; or
.2 issue a separate certificate indicating that the holder has the additional knowledge required by regulation II/6.
5 The Administration which has recognized a certificate issued by or under the authority
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knowledge required by regulation II/6.
5 The Administration which has recognized a certificate issued by or under the authority of another Party in compliance with regulation I/7 shall issue an endorsement attesting the recognition of that certificate in the form prescribed in format 3 of section A-I/3 of the STCW-F Code.
6 The endorsement shall expire as soon as the certificate endorsed expires or is withdrawn, suspended or cancelled by the Party which issued it and, in any case, not more than five years after the date of issue.
7 Appropriate certificates of competency issued under the provisions of the 1978 STCW Convention for the holder to serve as a chief engineer officer, an engineer officer or GMDSS radio operator shall be deemed to be a corresponding certificate for the purposes of paragraph 1 with regard to fishing vessels.
8 Medical certificates issued in accordance with the provisions of regulation I/9 of
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paragraph 1 with regard to fishing vessels.
8 Medical certificates issued in accordance with the provisions of regulation I/9 of the 1978 STCW Convention shall be accepted as valid for the personnel of fishing vessels.
9 Subject to the variations permitted under formats 1, 2 and 3 of section A-I/3 of the STCW-F Code, Administrations may use a format different from the format given in the section provided that such format contains, as a minimum, the required information and that the particulars are inserted in Roman characters and Arabic figures.
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Regulation I/4
Control procedures
1 Control exercised by a duly authorized officer under article 8 shall be limited to the following:

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Regulation I/4
Control procedures
1 Control exercised by a duly authorized officer under article 8 shall be limited to the following:
.1 verification that all fishing vessel personnel serving on board who are required to be certificated by this Convention are so certificated or hold the required dispensation. Such certificates shall be accepted unless there are clear grounds for believing that a certificate has been fraudulently obtained or that the holder of a certificate is not the person to whom that certificate was originally issued; and
.2 assessment of the ability of the fishing vessel personnel to maintain watchkeeping standards as required by the Convention if there are clear grounds for believing that such standards are not being maintained, because the following have occurred:
.1 the vessel has been involved in a collision, grounding or stranding; or
.2 there has been a discharge of substances from the vessel when
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.1 the vessel has been involved in a collision, grounding or stranding;
or
.2 there has been a discharge of substances from the vessel when under way, at anchor or at berth which is illegal under international conventions; or
.3 the vessel has been manoeuvred in an erratic or unsafe manner, whereby routeing measures adopted by the Organization, or safe navigation practices and procedures, have not been followed; or
.4 the vessel is otherwise being operated in such a manner as to pose a danger to persons, property or the environment.

2 In the event that deficiencies are found under paragraph 1, the officer carrying out the control shall forthwith inform, in writing, the skipper of the vessel and the Administration, so that appropriate action may be taken. Such notification shall specif y the details of the deficiencies found and the grounds on which the Party determines that these deficiencies pose a danger to persons, property or the environment.

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deficiencies found and the grounds on which the Party determines that these deficiencies pose a danger to persons, property or the environment.

3 Deficiencies which may be deemed to pose a danger to persons, property or the environment include the following:

.1 failure of persons, required to hold a certificate, to have an appropriate certificate or dispensation;

.2 failure of navigational or engineering watch arrangements to conform to the requirements specified for the vessel by the Administration;

.3 absence in a watch of a person qualified to operate equipment essential to safe navigation, safety radio communications or the prevention of pollution; or

.4 inability to provide rested persons for the first watch at the commencement of a voyage, and for subsequent relieving watches.

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AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND

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AMENDMENTS TO THE ANNEX TO THE INTERNATIONAL CONVENTION ON STANDARDS OF TRAINING, CERTIFICATION AND
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Regulation I/5
Communication of information
1 The Secretary -General shall, on request, provide Parties with any information communicated under article 4.
2 A Party which fails to communicate information required by article 4 within 24 months after the date of entry into force of the Convention for a Party shall not be entitled to claim the privileges of this Convention until such time as the information has been received by the Secretary-General.
Regulation I/6
Administration of certification arrangements
1 Each Party undertakes to establish and maintain a means of ensuring that programmes incorporating such instruction and practical training as is necessary to achieve the competency standards are regularly monitored to ensure their effectiveness.

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the competency standards are regularly monitored to ensure their effectiveness.
2 Each Party undertakes, to the extent practicable, to maintain a register or registers of all certificates and endorsements specified in regulations I/3 and II/1 to II/6 which are issued, have expired, or have been revalidated, reported lost, suspended or cancelled, and of dispensations issued, and provide information on the status of such certificates, endorsements and dispensations when so requested by another Party.
Regulation I/7
Recognition of certificates
1 Each Administration shall ensure, in order to recognize, by endorsement in accordance with regulation I/3, a certificate issued by or under the authority of another Party, that the requirements for standards of competence, as well as the issue and endorsement of certificates by that Party, are fully complied with.
2 Certificates issued by or under the authority of a non-Party shall not be recognized.
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that Party, are fully complied with.
2 Certificates issued by or under the authority of a non-Party shall not be recognized.
3 Notwithstanding the requirement of paragraph 1 of this regulation and paragraph 5 of regulation I/3, an Administration may, if circumstances require, allow a person to serve for a period not exceeding three months on board a vessel entitled to fly its flag while holding an appropriate and valid certificate issued by another Party without it being endorsed as required by paragraph 5 of regulation I/3 provided that documented proof is made available that application for an endorsement has been submitted to the Administration.

Regulation I/8

Transitional provisions

1 A certificate of competency or of service in a capacity for which this Convention requires a certificate and which before entry into force of the Convention for a Party is issued in accordance

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certificate and which before entry into force of the Convention for a Party is issued in accordance with the laws of that Party or the Radio Regulations shall be recognized as valid for service after entry into force of the Convention for that Party.

2 After the entry into force of the Convention for a Party, it may continue to issue certificates of competency in accordance with its previous practices for a period not exceeding five years. Such certificates shall be recognized as valid for the purpose of the Convention. During this transitional period, such certificates shall be issued only to persons who had commenced their sea service before entry into force of the Convention for that Party within the specific vessel department to which those certificates relate. The Party shall ensure that all other candidates for certification shall be examined and certificated in accordance with the Convention.

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examined and certificated in accordance with the Convention.
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3 A Party may, within two years after entry into force of the Convention for that Party, issue a certificate of service to fishing vessel personnel who hold neither an appropriate certificate under the Convention nor a certificate of competency issued unde r its laws before entry into force of the Convention for that Party but who have:
.1 served in the capacity for which they seek a certificate of service for not less than three years at sea within the last seven years preceding entry into force of the Convention for that Party;
.2 produced evidence that they have performed that service satisfactorily; and
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of the Convention for that Party;
.2 produced evidence that they have performed that service satisfactorily; and
.3 satisfied the Party as to medical fitness, including eyesight and hearing,
taking into account their age at the time of application.
For the purpose of the Convention, a certificate of service issued under this paragraph shall be regarded as the equivalent of a certificate issued under the Convention.

Regulation I/9
Dispensation

1 In circumstances of exceptional necessity, an Administration, if in its opinion this will not cause danger to persons, property or the environment, may issue a dispensation permitting a person to serve in a specified fishing vessel for a specified period not exceeding six months in a capacity, other than that of the radio operator, except as provided by the relevant Radio Regulations, for which the person does not hold the appropriate certificate, provided that the

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Regulations, for which the person does not hold the appropriate certificate, provided that the person to whom the dispensation is issued shall be adequately qualified to fill the vacant post in a safe manner, to the satisfaction of the Administration.

2 Any dispensation granted for a post shall be granted only to a person properly certificated to fill the post immediately below it. Where certification of the post below is not required by the Convention, a dispensation may be issued to a person whose competence and experience are, in the opinion of the Administration, clearly equivalent to the requirements for the post to be filled, provided that, if such a person holds no appropriate certificate, the person shall be required to pass a test accepted by th e Administration as demonstrating that such a dispensation may safely be issued. In addition, the Administration shall ensure that the post in

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dispensation may safely be issued. In addition, the Administration shall ensure that the post in question is filled by the holder of an appropriate certificate as soon as possible.

3 Each Party shall, as soon as possible after 1 January each year, send a report to the Secretary-General giving information of the total number of dispensations in respect of each capacity for which a certificate is required, including nil returns.

Regulation I/10

Equivalents

1 The Convention shall not prevent a Party from retaining or adopting other educational and training arrangements, including those involving seagoing service and shipboard organization especially adapted to technical developments and to special types of vessels, provided that the level of seagoing service, knowledge and efficiency as regards navigational and technical handling of vessels ensures a degree of safety at sea and has a preventive effect

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and technical handling of vessels ensures a degree of safety at sea and has a preventive effect
as regards pollution at least equivalent to the requirements of the Convention.
2 Details of such arrangements shall be included in the report under article 4.
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Regulation I/11
Use of simulators
1 The performance standards and other provisions set forth in section A-I/11 and such
other requirements as are prescribed in part A of the STCW -F Code for any certificate
concerned shall be complied with in respect of:
.1 all simulator-based training;
.2 any assessment of competency required by part A of the STCW -F Code
which is carried out by means of a simulator; and
.3 any demonstration, by means of a simulator, of continued proficiency
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which is carried out by means of a simulator; and
.3 any demonstration, by means of a simulator, of continued proficiency required by part A of the STCW-F Code.

Regulation I/12

Medical standards

1 Each Party shall establish standards of medical fitness for fishing vessel personnel and procedures for the issue of a medical certificate in accordance with the provisions of this regulation and of section A-I/12 of the STCW-F Code.

2 Each Party shall ensure that those responsible for assessing the medical fitness of fishing vessel personnel are medical practitioners recognized by the Party for the purpose of fishing vessel personnel medical examinations, in accordance with the provis ions of section A-I/12 of the STCW-F Code.

3 Every crew member holding a certificate issued under the provisions of the Convention who is serving at sea shall also hold a valid medical certificate issued in

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Convention who is serving at sea shall also hold a valid medical certificate issued in accordance with the provisions of this regulation and of section A-I/12 of the STCW-F Code.

4 Every candidate for certification shall:

.1 be not less than 16 years of age; or

.2 be not less than 15 years of age provided that the candidate is authorized by the competent authority in accordance with national laws and practice;

.3 provide satisfactory proof of his or her identity; and

.4 meet the applicable medical fitness standards established by the Party.

5 Medical certificates shall remain valid for a maximum period of two years unless the crew member is under the age of 18, in which case the maximum period of validity shall be one year.

6 If the period of validity of a medical certificate expires in the course of a voyage, then the medical certificate shall continue in force until the next port of call where a medical

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the medical certificate shall continue in force until the next port of call where a medical practitioner recognized by the Party is available, provided that the period shall not exceed three months.

7 In urgent cases the Administration may permit a crew member to work without a valid medical certificate until the next port of call where a medical practitioner recognized by the Party is available, provided that:

.1 the period of permission does not exceed three months; and

.2 the crew member concerned is in possession of an expired medical certificate of recent date.

CHAPTER II

Certification of skippers, officers in charge of a navigational watch, engineer officers and radio operators

Regulation II/1

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CHAPTER II

Certification of skippers, officers in charge of a navigational watch, engineer officers and radio operators

Regulation II/1

Mandatory minimum requirements for certification of skippers on fishing vessels of 24 metres in length and over operating in unlimited waters

1 Every skipper on a fishing vessel of 24 metres in length and over operating in unlimited waters shall hold a certificate of competency.

2 Every candidate for certification shall:

.1 meet the requirements for certification as an officer in charge of a navigational watch on fishing vessels of 24 metres in length and over operating in unlimited waters, and have approved seagoing service of not less than 12 months as an officer in charge of a navigational watch or skipper on fishing vessels of not less than 12 metres in length. However, the Party may allow the substitution of a period not exceeding six months of approved seagoing service as an officer in charge of

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not exceeding six months of approved seagoing service as an officer in charge of a navigational watch on seagoing ships covered by the 1978 STCW Convention; and

.2 meet the standard of competence specified in section A-II/1 of the STCW-F Code.

3 A candidate who holds a valid certificate of competency issued in accordance with the provisions of the 1978 STCW Convention need not be reassessed in those standards of competence listed in section A -II/1 of the STCW -F Code that were required at a highe r or equivalent level for the issuance of the corresponding 1978 STCW Convention certificate.

Regulation II/2

Mandatory minimum requirements for certification of officers in charge of a navigational watch on fishing vessels of 24 metres in length and over operating in unlimited waters

1 Every officer in charge of a navigational watch on a fishing vessel of 24 metres in length and over operating in unlimited waters shall hold a certificate of competency.

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length and over operating in unlimited waters shall hold a certificate of competency.
2 Every candidate for certification shall:
.1 be not less than 18 years of age;
.2 have approved seagoing service of not less than:
.1 12 months on fishing vessels or fishing training vessels of not less than 12 metres in length as part of an approved training programme which includes onboard training that meets the requirements of section A -II/2 of the STCW -F Code and is documented in an approved training record book; or

.2 two years in the deck department on fishing vessels of not less than 12 metres in length. However, the Administration may allow the substitution of the seagoing service by a period of special training
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than 12 metres in length. However, the Administration may allow the substitution of the seagoing service by a period of special training not exceeding one year, provided that the period of the special training programme shall be at least equivalent in value to the period of the required seagoing service it substitutes or by a period of approved seagoing service evidenced by an approved record book covered by the 1978 STCW Convention;

.3 meet the standard of competence specified in section A-II/2 of the STCW-F Code; and

.4 meet the applicable requirements of regulation II/6, as appropriate for performing designated radio duties in accordance with the Radio Regulations.

3 A candidate who holds a valid certificate of competency issued in accordance with the provisions of the 1978 STCW Convention need not be reassessed in those standards of competence listed in section A -II/2 of the STCW -F Code that were required at a highe r or

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competence listed in section A -II/2 of the STCW -F Code that were required at a highe r or equivalent level for the issuance of the corresponding 1978 STCW Convention certificate.

Regulation II/3

Mandatory minimum requirements for certification of skippers on fishing vessels of 24 metres in length and over operating in limited waters

1 Every skipper on a fishing vessel of 24 metres in length and over operating in limited waters shall, unless they hold certificates issued in compliance with regulation II/1, hold a certificate of competency issued in compliance with at least the provisions of this regulation.

2 Every candidate for certification shall:

.1 meet the requirements for certification as an officer in charge of a navigational watch on fishing vessels of 24 metres in length and over operating in limited or unlimited waters, and have approved seagoing service of not less than 12 months as an officer in charge of a navigational watch or

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of not less than 12 months as an officer in charge of a navigational watch or skipper on fishing vessels of not less than 12 metres in length. However, a Party may allow the substitution of a period not exceeding six months o f approved seagoing service as an officer in charge of a navigational watch on seagoing ships covered by the 1978 STCW Convention; and

.2 meet the standard of competence specified in section A-II/3 of the STCW-F Code.

3 The Party, bearing in mind the effect on the safety of all vessels and structures which may be operating in the same limited waters, should consider the limited waters it has defined in accordance with the definition given in regulation I/1 and determine any additional material that should be included in the standard of competence.

4 A candidate who holds a valid certificate of competency issued in accordance with the provisions of the 1978 STCW Convention need not be reassessed in those standards of

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the provisions of the 1978 STCW Convention need not be reassessed in those standards of competence listed in section A -II/3 of the STCW -F Code that were required at a highe r or equivalent level for the issuance of the corresponding 1978 STCW Convention certificate.

Regulation II/4

Mandatory minimum requirements for certification of officers in charge of a navigational watch on fishing vessels of 24 metres in length and over operating in limited waters

1 Every officer in charge of a navigational watch on a fishing vessel of 24 metres in length and over operating in limited waters shall either hold a certificate issued in compliance with regulation II/2 or hold a certificate of competency issued in compliance with at least the

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with regulation II/2 or hold a certificate of competency issued in compliance with at least the provisions of this regulation.

2 Every candidate for certification shall:

.1 be not less than 18 years of age;

.2 have approved seagoing service of not less than:

.1 12 months on fishing vessels or fishing training vessels of not less than 12 metres in length as part of an approved training programme which includes onboard training that meets the requirements of section A -II/4 of the STCW -F Code and is documented in an approved training record book; or

.2 two years in the deck department on fishing vessels of not less than 12 metres in length. However, the Administration may allow the substitution of the seagoing service by a period of special training not exceeding one year, provided that the period of the special training programme shall be at least equivalent in value to the period of the required seagoing service it substitutes or by a period of

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training programme shall be at least equivalent in value to the period
of the required seagoing service it substitutes or by a period of
approved seagoing service evidenced by an approved record book
covered by the 1978 STCW Convention;
.3 meet the standard of competence specified in section A-II/4 of the STCW-F
Code; and
.4 meet the appropriate requirements for performing designated radio duties in
accordance with the Radio Regulations.
3 A candidate who holds a valid certificate of competency issued in accordance with
the provisions of the 1978 STCW Convention need not be reassessed in those standards of
competence listed in section A -II/4 of the STCW-F Code, which were required at a hig her or
equivalent level for the issuance of the corresponding 1978 STCW Convention certificate.
Regulation II/5-1-1
Mandatory minimum requirements for certification of chief engineer officers and
second engineer officers on fishing vessels powered by main propulsion machinery
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second engineer officers on fishing vessels powered by main propulsion machinery of 3,000 kW propulsion power or more

1 Every chief engineer officer and second engineer officer on a seagoing fishing vessel powered by main propulsion machinery of 3,000 kW propulsion power or more shall hold a certificate of competency.

2 Every candidate for certification shall:

.1 meet the requirements for certification as an officer in charge of an engineering watch on fishing vessels powered by main propulsion machinery of 750 kW propulsion power or more and have approved seagoing service in that capacity:

.1 for certification as second engineer officer, have not less than 12 months as qualified engineer officer; and

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.1 for certification as second engineer officer, have not less
than 12 months as qualified engineer officer; and
.2 for certification as chief engineer officer, have not less
than 36 months; however, this period may be reduced to not less
than 24 months if not less than 12 months of such seagoing service
has been served as second engineer officer; and
.2 have completed approved education and training and meet the standard of
competence specified in section A-II/5-1-1 of the STCW-F Code.
Regulation II/5-1-2
Mandatory minimum requirements for certification of chief engineer officers and
second engineer officers on fishing vessels powered by main propulsion machinery of
between 750 kW and 3,000 kW propulsion power
1 Every chief engineer officer and second engineer officer on a seagoing fishing vessel
powered by main propulsion machinery of between 750 kW and 3,000 kW propulsion power
shall hold a certificate of competency.
2 Every candidate for certification shall:
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shall hold a certificate of competency.
2 Every candidate for certification shall:
.1 meet the requirements for certification as an officer in charge of an engineering watch on fishing vessels powered by main propulsion machinery of 750 kW propulsion power or more and:
.1 for certification as second engineer officer, have not less than 12 months of approved seagoing service as assistant engineer officer or engineer officer; and
.2 for certification as chief engineer officer, have not less than 24 months of approved seagoing service of which not less than 12 months shall be served while qualified to serve as second engineer officer; and
.2 have completed approved education and training and meet the standard of competence specified in section A-II/5-1-2 of the STCW-F Code.
3 Every engineer officer who is qualified to serve as second engineer officer on fishing vessels powered by main propulsion machinery of 3,000 kW propulsion or more, may serve
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vessels powered by main propulsion machinery of 3,000 kW propulsion or more, may serve as chief engineer officer on fishing vessels powered by main propulsion machinery of less than 3,000 kW propulsion power, provided the certificate is so endorsed.

Regulation II/5-2

Mandatory minimum requirements for certification of officers in charge of an engineering watch in a manned engine -room or designated duty engineers in a periodically unmanned engine-room on fishing vessels powered by main propulsion machinery of 750 kW propulsion power or more

1 Every officer in charge of an engineering watch in a manned engine -room or designated duty engineer officer in a periodically unmanned engine -room serving on a seagoing fishing vessel powered by main propulsion machinery of 750 kW propulsion power or more shall hold a certificate of competency.

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or more shall hold a certificate of competency.
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2 Every candidate for certification shall:
.1 be not less than 18 years of age;
.2 have completed 12 months of combined workshop skills training and approved seagoing service of which not less than six months must be served on board fishing vessels or fishing training vessels as part of an approved training programme which includes onboa rd training that meets the requirements of section A-II/5-2 of the STCW-F Code and is documented in an approved training record book; or
.3 have completed 12 months of combined workshop skills training and approved seagoing service of which not less than six months must be served on ships
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seagoing service of which not less than six months must be served on ships or training ships being operated in accordance with the 1978 STCW Convention as part of an approved training programme which includes onboard training that meets the requirements of section A -II/5-2 of the STCW-F Code and is documented in an approved training record book; or

.4 have approved seagoing service of not less than 12 months in the engine - room. However, the Administration may allow, as deemed necessary, the substitution of up to six months of the seagoing service by a period of special training such as workshop skill s training, provided that the special training programme is equivalent in value to the period of the required seagoing service it substitutes; and

.5 meet the standard of competence specified in section A -II/5-2 of the STCW-F Code.

3 The Party may vary the requirements for standard of competence and seagoing

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STCW-F Code.
3 The Party may vary the requirements for standard of competence and seagoing service for officers of fishing vessels engaged in voyages in limited waters bearing in mind the power of the propulsion machinery and the effect on the safety of all fishing vessels which may be operating in the same waters.
4 Training to achieve the necessary theoretical knowledge and practical experience shall take into account relevant international regulations and recommendations.
Regulation II/6
Mandatory minimum requirements for certification of GMDSS radio operators on board fishing vessels
Explanatory note
Mandatory provisions relating to radio watchkeeping are set forth in the Radio Regulations and in the 2012 Cape Town Agreement. Provisions for radio maintenance are set forth in the 2012 Cape Town Agreement. The referred provisions are mandatory in the Radio Regulations and will be mandatory in the 2012 Cape Town Agreement when it enters into force.
Application
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will be mandatory in the 2012 Cape Town Agreement when it enters into force.

Application

1 Except as provided in paragraph 2, the provisions of this regulation shall apply to radio operators on fishing vessels operating within the Global Maritime Distress and Safety System (GMDSS) as prescribed by the international conventions.

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